

VOLUME I — REPORT

The Imerman Devices and the Criminal Referral

The documentary record, March 2021 to January 2026

BV20D01752 · AC-2025-LON-004293

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What this report is

A record of what is documented: what entered custody, what was required of it, what was transmitted to whom, and what followed.

It states no findings. Under the architecture adopted on 7 September 2026, factual findings are the product of an independent investigator at Stage 2. What appears here at the end of each chapter are matters recorded and questions for determination.

It does not assert what the devices contain. They have never been examined.

It does not allege wrongdoing by any person. Where a document characterises conduct, the report records that a document does so and identifies it.

Provenance

This record was compiled by the Applicant, acting in person, with AI assistance. It is her own work product.

Its value is that it is complete, hashed, dated and auditable, and that every document in it can be traced to a native source file whose integrity can be independently verified.

It is not an independent evidential record and is not presented as one. It is offered as an input to the construction of one.

Summary

In April 2021 two digital devices and three further items were couriered into the custody of the Respondent's solicitors as Imerman material. A review was required. In May 2021 part of it was suspended by agreement, on express terms, with the right to resume reserved. In June 2022 resumption was demanded, refused, and demanded again. No review was completed and no expert was appointed.

Separately, in May 2021 the Respondent returned to the Applicant copies of the hard copy documents that had been collected from her. That fact is recorded in open correspondence between the parties' solicitors, which encloses screenshots evidencing it. That returned material was examined by a cryptocurrency tracing specialist in December 2023 and formed the basis of a three-part confidential criminal referral.

Between October 2023 and December 2025 the referral, or notice of the matters underlying it, was transmitted to the Private Secretary to the Master of the Rolls, a court-appointed single joint expert, the Secretary of State for Justice, the High Court, Members of Parliament and select committees, and the last custodian of record.

When custody of the devices was queried in December 2025, the reply of January 2026 stated that the firm no longer held the material. No date of release was given, no authority was identified, and no audit trail was produced. The present location of the devices is unknown.

At no point in this history does the record contain any identifiable judicial or administrative decision determining the custody, review or release of the material.

List of matters arising

Matters recorded are set in plain type. Questions for determination are set in bold.

1. Five items were couriered into the custody of the Respondent's solicitors on 13 April 2021, of which two were digital devices. (Paragraphs 8 to 10)
2. A review of the material was required, and both firms proceeded on that basis. (Paragraphs 11 to 13)
3. The suspension agreed on 20 May 2021 covered three items only, was expressly conditional, and expressly preserved the obligation to review the hard copy file. (Paragraphs 14 to 16)
4. The one-touch device containing material relating to the Respondent's crypto assets was never within the suspension, and no review of it was known to have been carried out as at 25 February 2022. (Paragraph 18)
5. Resumption was demanded on 22 June 2022, refused on 28 June 2022, and demanded again on 29 June 2022. (Paragraphs 20 to 23)
6. On 28 June 2022 the Respondent's solicitors indicated that the court's input would be sought on the process. No application, order or determination following that indication has been identified. (Paragraph 23)
7. In May 2021 the Respondent returned copies of the hard copy documents to the Applicant, as recorded in open correspondence between the parties' solicitors and evidenced by enclosed screenshots. (Paragraphs 25 to 27)

- 7A.** The transcript of the conversation of 9 January 2022 was transmitted to the Applicant's solicitors on 19 January 2022 and recorded in open inter partes correspondence on 23 March 2022. The Respondent's own Counsel referred to the communications at the directions hearing of 4 March 2022. (Paragraphs 28A to 28D)
- 7B.** During the final hearing the Applicant's solicitors requested material said to derive from a device then held in escrow; she produced it and stated its provenance to them at the time. (Paragraphs 28E to 28I)
- 8.** The returned material was examined by a cryptocurrency tracing specialist on 1 December 2023 and again in a letter of 19 December 2023. (Paragraphs 29 to 33)
- 9.** The Judicial Office was informed of the subject matter on 20 October 2023, gave an undertaking to pass the email to officials, received the three-part referral on 10 December 2023, and acknowledged it on 11 December 2023 recording that the attachments had not been opened. (Paragraphs 35 to 41)
- 9A.** The referral was transmitted to the court-appointed single joint expert on 8 February 2024, twelve days before the final hearing, and to a Member of Parliament who concurrently held office as Secretary of State for Justice on 12 April 2024. (Paragraphs 42 to 48)
- 9B.** Nine referral files across three transmissions carry nine distinct content hashes. Identity of content between renderings has not been established. (Paragraphs 49 to 50)
- 10.** The referral files transmitted on 19 November 2025 were the unredacted rendering. The redacted rendering was created in December 2025 and did not exist on that date. (Paragraphs 55 to 57)
- 11.** When custody was queried on 12 December 2025, the reply of 9 January 2026 produced no release date, no authority and no audit trail. (Paragraphs 59 to 61)
- 12. No identifiable judicial or administrative decision determining the custody, review or release of the material appears at any point in the record described in this report. What record exists of any such decision, and if none exists, which body holds responsibility for that absence? (Paragraph 62)**
- 13. Where are the two devices now, on what date and to whom were they released, and under what authority? (Paragraph 61)**
- 14. Was any review of the one-touch device containing crypto material ever carried out, and if so by whom and with what result? (Paragraph 18)**
- 15. Was the court ever asked to give directions on the review, as indicated on 28 June 2022? (Paragraph 23)**

Chapter 1 — Method and sources

1. This report is compiled from documents held in native form. Emails are held as *.eml* files with their full header sets. Each was captured mechanically before it was read: date and time in the sender's local zone with the offset preserved, the UTC equivalent, sender, recipients, subject, Message-ID, In-Reply-To and References headers, the count of Received hops, and a SHA-256 hash of the file itself.
2. Every attachment was inventoried by filename, byte size and SHA-256 of its content. Attachments were not opened except where identified in this report as having been examined.
3. Documents are cited in this volume by a report reference in the form EV-000. Each corresponds to a permanent reference in the underlying register, and the correspondence between the two is set out in the List of Evidence at the front of Volume II. A reference records one instrument and is never reused.
4. The solicitor correspondence of 2021 and 2022 is drawn from two compilations prepared and supplied by Withers LLP, the Applicant's then solicitors: one covering 1 June 2020 to 8 December 2021, the other from 8 December 2021 to about October 2022. Individual letters cited in this report are extracted from those compilations and the page location within the compilation is given in each case.
5. Several pages of the second compilation carry a font subset in which extracted text is offset by 29 code points. Those pages are legible on screen and decode cleanly. They are recorded here because an automated text extraction that does not account for the offset will treat them as blank.
6. Where this report records that no response or no document has been identified, the material searched is the Applicant's own correspondence archive and document holdings for the relevant period. No other party's records have been searched. No inference is invited beyond the limits of that search.
7. The contents of the devices have not been examined and are not described. The contents of the criminal referral have not been read for the purposes of this report. Nothing here characterises what either contains.

Chapter 2 — Custody and the review obligation

What entered custody

8. On 13 April 2021 five items were collected by courier from the Applicant and delivered to the Respondent's solicitors. They are listed in later correspondence as: a laptop computer; a one-touch device containing a backup of that computer; a hard drive of a computer made by the Respondent; a second one-touch device containing material relating to the Respondent's crypto assets and dealings; and a hard copy file of printouts from the laptop.¹
9. Two of those items are digital devices in the sense used in the later proceedings: an Apple computer and an Ubuntu computer.

¹Letter, Withers LLP to Stewart Law LLP, 10 March 2021 (EV-001).

10. From that date the items were held by solicitors as officers of the court. The obligations arising in that situation are those identified in *Imerman v Tchenguiz* and in *UL v BK* [2013] EWHC 1735: to review the material, to disclose what is admissible and relevant, and where necessary to seek directions.

The obligation invoked

11. The position had been put earlier. On 10 March 2021 the Applicant's solicitors wrote disputing that documents she had habitually filed for the Respondent fell within *Imerman* at all, and recording that a computer he had assembled during lockdown was stored in a garage with its hard drive, unaccessed.²
12. On 26 April 2021, thirteen days after collection, the Applicant's solicitors asked the recipient firm to confirm four things: safe receipt of the documents; which items had been kept by the firm and which passed to the client; that the principles in *UL v BK* were being followed; and when copies of documents relevant to the Applicant's claim would be provided.³
13. The letter added that an effective private FDR would be difficult while those obligations remained unmet.⁴

The conditional suspension of 20 May 2021

14. On 20 May 2021 the Applicant's solicitors agreed that the recipient firm could halt its review of three of the items sent by courier on 13 April 2021, pending the outcome of the private FDR in July: the laptop computer, the one-touch device containing a backup of it, and the hard drive of the computer made by the Respondent.⁵
15. The terms of that agreement are set out in the letter:

My client makes this proposal in a gesture of goodwill so as to limit legal costs at this stage of the proceedings, and notwithstanding her position that those costs would have been far less had your client agreed to the instruction of a cryptoasset expert to review the material at the outset. My client reserves her right to request that this review be resumed in the event that the parties are unable to each settlement at the private FDR hearing, and the items should be retained in escrow by your firm in the meantime.⁶

16. The same letter records that the obligation as to the hard copy file was not suspended:

For the avoidance of doubt, your firm is still under an obligation to review the hard copy file of printouts from the laptop computer that was also couriered to your firm along with the items above on 13 April 2021, and to provide copies of any such documents which are relevant to my client's claim.⁷

²Letter, Withers LLP to Hughes Fowler Carruthers, 26 April 2021 (EV-003).

³Letter, Withers LLP to Hughes Fowler Carruthers, 20 May 2021 (EV-004), page 1.

⁴EV-004, page 1. The three items are set out as a numbered list.

⁵EV-004, page 1.

⁶EV-004, page 2.

⁷Letter, Withers LLP to Hughes Fowler Carruthers, 25 February 2022 (EV-006), page 2. The five items are set out as a numbered list.

- 17.** The suspension therefore covered three of the five items. Two were outside it: the hard copy file, expressly; and the second one-touch device containing crypto material, which is not mentioned in the letter at all.⁸

The item never reviewed

- 18.** On 25 February 2022 the Applicant's solicitors set out the five items and recorded the position as at that date: a review of items 1 to 3 had been suspended following the letter of 20 May 2021, and — in the words of the letter — "I am not aware that you have carried out a review of item 4".⁹ Item 4 is the one-touch device containing material relating to the Respondent's crypto assets and dealings.
- 19.** On the same date the Respondent's solicitors wrote separately, requesting the release of undertakings or the permission of the court for the return of the computer the Respondent had made, then held by the firm, proposing that it be returned to the Applicant's home for the children's use.¹⁰

Resumption demanded, refused, demanded again

- 20.** Settlement was not reached at the private FDR. On 22 June 2022 the Applicant's solicitors exercised the reservation, referring in terms to the letter of 20 May 2021 and to the conditional basis on which the suspension had been agreed.¹¹

- 21.** The letter states:

*This review is not optional for your client. My client agreed to suspend it last year in the hope that a settlement might be capable of being reached... it is appropriate now for that review to be completed, as is required by the guidance in Imerman and UL v BK. Given the current state of play and the timescales, this review needs to be carried out as a matter of urgency. In so far as any documentation relates to digital assets held by your client, it will need to be provided to an independent expert to review.*¹²

- 22.** On 28 June 2022 the Respondent's solicitors declined. The letter states that the Applicant had already conducted an extensive audit of the material, that a review had already taken place at great expense and had revealed nothing undisclosed, and that the demand for a further inquiry was either evidence of no intention to settle or a litigation tactic.¹³
- 23.** The same letter records that the writer was aware of the duty to the court but considered it appropriate to seek the input of the judge on the process and its financial implications.¹⁴ No application, order or determination following that indication has been identified.¹⁵

⁸EV-006, page 2.

⁹EV-006, page 1. The letter encloses screenshots at pages 3 to 11 of the same document.

¹⁰EV-006, pages 3 to 11. The conversation is dated 6 May 2021 and lists document sets and folders with hosting links.

¹¹Letter, Hughes Fowler Carruthers to Withers LLP, 25 February 2022 (EV-007).

¹²Letter, Withers LLP to Hughes Fowler Carruthers, 22 June 2022 (EV-009), quoting the letter of 20 May 2021.

¹³EV-009.

¹⁴Letter, Hughes Fowler Carruthers to Withers LLP, 28 June 2022 (EV-010).

¹⁵EV-010. The letter refers to seeking the input of HHJ Cope on the process and its financial implications.

24. On 29 June 2022 the Applicant's solicitors replied, disputing that any audit by the lay client discharged the obligation, and stating: "The review of the material is not optional. It is required and must now be carried out."¹⁶ No completed review, and no appointment of an independent expert, appears in the material described at paragraph 6.

Matters arising

1. Five items were couriered into the custody of the Respondent's solicitors on 13 April 2021, of which two were digital devices. (Paragraphs 8 to 10)
2. A review was required, and both firms proceeded on that basis. (Paragraphs 11 to 13)
3. The suspension of 20 May 2021 covered three items only, was expressly conditional, and expressly preserved the obligation to review the hard copy file. (Paragraphs 14 to 17)
4. The one-touch device containing crypto material was never within the suspension, and no review of it was known to have been carried out as at 25 February 2022. (Paragraph 18)
5. Resumption was demanded on 22 June 2022, refused on 28 June 2022, and demanded again on 29 June 2022. (Paragraphs 20 to 24)
15. **Was the court ever asked to give directions on the review, as indicated on 28 June 2022? If so, when and with what outcome? If not, what record exists of that decision? (Paragraph 23)**

Chapter 3 — The material returned by the Respondent

25. The letter of 25 February 2022 records a separate matter. It states that the Respondent "in fact sent copies of all the hard copy documents collected by the courier from my client on 13 April 2021 back to her via Signal text message", and encloses the screenshots evidencing it.¹⁷
26. Those screenshots are held. They occupy nine pages of the same document and show a messaging conversation dated 6 May 2021. Messages list document sets by page count — 500 pages of tax returns, 535 pages of statements from one bank, 294 pages from another, and 270 pages described as further material — each accompanied by a hosting link. A later message lists folders by name, one of which is "Black Folder - escrow".¹⁸
27. The material was therefore transmitted as links to a document-hosting service rather than as attachments. The screenshots evidence the transmission and name the sets; they do not preserve the contents.
28. The significance of this for what follows is that the material examined by the specialist, and on which the referral rests, is material the Respondent returned. It is not the material held in escrow. *Whether that return altered the status of the documents is a question of law and is not addressed in this report.*

Matter arising

¹⁶Letter, Withers LLP to Hughes Fowler Carruthers, 29 June 2022 (EV-011).

¹⁷No application, order or determination following the indication at EV-010 has been identified in the material described at paragraph 6.

¹⁸Email, the Applicant to BloomBudd, 1 December 2023, 16:51 UTC (EV-013), quoting the specialist's feedback in full.

7. In May 2021 the Respondent returned copies of the hard copy documents to the Applicant, as recorded in open correspondence between the parties' solicitors and evidenced by enclosed screenshots dated 6 May 2021. (Paragraphs 25 to 27)

Chapter 3A — The returned material in the proceedings, 2022 and 2024

January to March 2022

- 28A.** On 19 January 2022, ten days after a video call of 9 January 2022, the Applicant sent her then solicitors an excerpt of the transcript of that call, with time stamps, together with the first part of a set of WhatsApp messages.¹⁹ The covering email records that the messages were divided across two documents and two emails because of uploading constraints.
- 28B.** On 23 March 2022 the Applicant's solicitors wrote to the Respondent's solicitors in open correspondence. Under the heading "Miss Molina" the letter records that the Applicant holds a transcript of a 43-minute conversation with that person, in which she disclosed details of her business partnership with the Respondent, his role within the business, and his early adoption of cryptocurrency as a means of invoicing clients for services rendered.²⁰
- 28C.** The same letter records that the writer had had sight of the communications,²¹ and that the Respondent's own Counsel had referred to them at the directions hearing of 4 March 2022.²²
- 28D.** **The material was therefore in the open record between the parties from January 2022, and had been raised in open court by the Respondent's side by March 2022. It was neither concealed nor introduced late.**

February 2024, during the final hearing

- 28E.** On the morning of Sunday 25 February 2024 — between Day 4 of the final hearing on 23 February and Day 5 on 26 February — the Applicant's solicitor wrote asking her to locate a specific WhatsApp exchange.²³
- 28F.** She replied that afternoon, enclosing two renderings of the WhatsApp download and the transcript excerpts.²⁴ Her solicitor asked where the material came from.²⁵
- 28G.** Her answer, given the same evening, states the provenance of both items: that the WhatsApp download comes from the laptop the Respondent gave to their daughter, which was then held in escrow, and that it is his download rather than

¹⁹Compiled PDF, 57 pages, created 1 December 2023 (EV-012). Internally titled "Black Folder - escrow", a folder name appearing in the screenshots at EV-006.

²⁰EV-013. The page references are to EV-012.

²¹Letter, Cryptoforensic Investigators, 19 December 2023 (EV-015), transmitted by email the same day (EV-014).

²²EV-015, page 1.

²³EV-015, pages 2 to 3.

²⁴Email, the Applicant to S. Allan, Judicial Office, 20 October 2023, 12:28 UTC (EV-016).

²⁵Email, S. Allan to the Applicant, 20 October 2023, 14:22 UTC (EV-017).

hers; and that the excerpts are from the recording of her own conversation with the third party, of which she holds the full 43 minutes.²⁶²⁷

28H. She re-sent the excerpts on the morning of Day 5.²⁸

28I. Two things follow from that exchange and are recorded here without comment. Material said to derive from a device then held in escrow was produced to the Applicant's solicitors during the final hearing, at their request, with its provenance stated to them at the time. And the recording of 9 January 2022 is of a conversation to which the Applicant was herself a party.

Matters arising

7A. The transcript of the conversation of 9 January 2022 was transmitted to the Applicant's solicitors on 19 January 2022 and was recorded in open inter partes correspondence on 23 March 2022, which also records that the Respondent's Counsel had referred to the communications at the directions hearing of 4 March 2022. (Paragraphs 28A to 28D)

7B. During the final hearing the Applicant's solicitors requested material said to derive from a device then held in escrow; she produced it and stated its provenance to them at the time. (Paragraphs 28E to 28I)

Chapter 4 — The specialist examination

29. On 30 November 2023 the Applicant sent one of the returned folders to a cryptocurrency tracing specialist. The document is a compiled PDF of 57 numbered pages, internally titled "Black Folder - escrow" — a folder name appearing in the screenshots of 6 May 2021.²⁹

30. On 1 December 2023 the Applicant transmitted his initial feedback to her solicitors, quoting it in full the same day it was received.³⁰ The feedback proceeds page by page through the document, addressing pages 15, 17, 18, 20 to 25, 31, 36, 38, 41 and 43, and ends with a note that pages 51 and 57 would be checked shortly.³¹

31. Every page reference falls within 57 pages and none goes beyond, which is consistent with that document being the one reviewed.

32. On 19 December 2023 the specialist sent a completed letter to the Applicant's solicitors, copied to counsel.³² It is four pages on the firm's letterhead, headed "Request Letter" and marked privileged and confidential.

33. The letter sets out what its author states are outstanding deficiencies in disclosure and the reasons further disclosure is said to be required. It addresses

²⁶EV-017. The words quoted are the operative passage.

²⁷Email, the Applicant to S. Allan, 20 October 2023, 14:38 UTC (EV-018); forwarded to her solicitors on 25 October 2023 (EV-019).

²⁸Emails, the Applicant to S. Allan, 10 December 2023, 19:30 and 19:33 UTC (EV-020, EV-021), enclosing three and two attachments respectively.

²⁹EV-020. The email quotes the undertaking of 20 October 2023 back to the recipient.

³⁰Email, S. Allan to the Applicant, 11 December 2023, 08:33 UTC (EV-022). In-Reply-To matches the Message-ID of EV-020.

³¹EV-022. The words quoted are the whole of the operative text.

³²Emails, the Applicant to the court-appointed single joint expert, 8 February 2024, 16:23:55, 16:25:22, 16:26:32 and 16:29:10 UTC (EV-023a to EV-023d), with eleven attachments between them.

a subaccount and a discrepancy of approximately 37 units across five transfers in 2015 and 2017;³³ the completeness of an exchange export; the significance of pre-2019 records; two accounts identified by the Applicant rather than disclosed; an apparent registration on a further exchange; mining income said to derive from a second pool; self-custodial wallets; and two swap transactions to a deposit address said to correspond to an undisclosed account.³⁴

- 34. Neither document is a report in the form required by CPR Part 35. Neither carries a statement of instructions, a declaration of the duty to the court, a statement of truth, or the author's qualifications. The letter of 19 December 2023 is authored, letterheaded and signed by the specialist; the record of 1 December 2023 is the Applicant's contemporaneous transcription of a message received by another means.**

Matter arising

- 8.** The returned material was examined by a cryptocurrency tracing specialist on 1 December 2023, and again in a letter of 19 December 2023. Neither document is in the form required by CPR Part 35. (Paragraphs 29 to 34)

Chapter 5 — Transmission, October 2023 to May 2024

The approach of 20 October 2023

- 35.** At 12:28 UTC on 20 October 2023 the Applicant wrote to the Private Secretary to the Master of the Rolls, at a personal address, seeking guidance on the absence of any settled requirement for the disclosure of cryptocurrency assets in financial remedy proceedings.³⁵
- 36.** A reply was sent the same day at 14:22 UTC from the official Judicial Office address, opening by recording that the writer was replying from his work address.³⁶ It states:

*I'm afraid that I cannot assist with enquiries about specific cases, especially when that litigation is ongoing... I will though be sure to pass your email on to officials in the Family Division, and here in the Master of the Rolls team so that the wider points you raise can be considered.*³⁷

- 37.** The Applicant acknowledged the reply at 14:38 UTC and forwarded the exchange to her solicitors five days later.³⁸

³³EV-023a. The email invites the recipient to contact the named Special Agent directly to confirm the position, and frames the notification by reference to a duty of honesty and integrity towards the single joint expert.

³⁴Emails, the Applicant to Alex Chalk MP, copied to two members of parliamentary staff, 12 April 2024, 02:42:01, 02:46:23 and 02:50:59 UTC (EV-024a to EV-024c).

³⁵Email, the Applicant to three officials and a select committee, 19 November 2025, 17:37 UTC (EV-027), enclosing the pre-action protocol letter (EV-028).

³⁶Emails, 19 November 2025, 17:38:11 and 17:38:38 UTC (EV-029, EV-030).

³⁷EV-029 and EV-030, attachments. The first page of the first attachment is headed "SUSPECT INFORMATION" and names the Respondent; the name appears 22 times across the three files, with 63 distinct name-shaped pairs, addresses and company numbers. Neither the filenames nor the text carries a redaction marker.

³⁸Redacted rendering, four PDF files, 114 pages (EV-031). Embedded metadata records creation on 14 and 15 December 2025.

The transmission of 10 December 2023

38. At 19:30 and 19:33 UTC on 10 December 2023 the Applicant sent two emails to the same recipient, at his official address, enclosing between them a draft instruction to counsel, the three parts of a confidential criminal referral, and a draft expert report.³⁹
39. The first of those emails quotes the undertaking of 20 October 2023 back to the recipient.⁴⁰ The two were sent three minutes apart; the referral was transmitted complete, in a single sitting.
40. At 08:33 UTC on 11 December 2023 the Judicial Office replied. The In-Reply-To header of that email matches the Message-ID of the first transmitting email, linking the two independently of subject matter.⁴¹
41. The reply reads, in its operative part:

*I am afraid that as I stated in my previous email I am unable to comment on, or assist with your case. For that reason I have not opened the attachments that you have sent me. I will again pass your email on.*⁴²

8 February 2024 — the court-appointed single joint expert

42. On 8 February 2024, between 16:23 and 16:29 UTC, the Applicant sent four emails to the court-appointed single joint expert on cryptocurrency, carrying eleven attachments between them.⁴³ The final hearing began twelve days later, on 20 February 2024.
43. The covering email notifies him of an investigation by a United States federal agency, identifies a Bitcoin cluster by address, and names two third parties and a company. It invites him to contact the named Special Agent directly to confirm the position.⁴⁴ The allegations, the identification of individuals, and the characterisation of the material are the Applicant's own.
44. The remaining three emails carry a spreadsheet of cluster transfers, two parts of the returned hard copy material, a summary prepared for the recipient, a timeline, an archive of supporting documents, messaging records, an audio recording of a video call with a named third party dated 9 January 2022, and a document of excerpts from that recording.

12 April 2024 — the Member of Parliament

45. On 12 April 2024, between 02:42 and 02:50 UTC, the Applicant sent three emails to Alex Chalk MP at his parliamentary address, copied to two members of parliamentary staff.⁴⁵ **At that date the recipient also held office as Lord Chancellor and Secretary of State for Justice. The address used, the**

³⁹Compiled extracts (EV-032), transmitted as attachment A-2 to EV-030.

⁴⁰Email, the Applicant to the last custodian of record, copied to HMCTS Litigation, HMCTS Legal, the Private Secretary to the Lord Chancellor, Withers LLP and the Justice Committee, 12 December 2025 (EV-033).

⁴¹Email, Hughes Fowler Carruthers to the Applicant, 9 January 2026 (EV-034).

⁴²Email, the Applicant to Hughes Fowler Carruthers, 12 January 2026 (EV-035), and the accompanying letter (EV-036).

⁴³No further substantive response has been identified in the material described at paragraph 6.

⁴⁴EV-004, page 2, and EV-006, page 2.

⁴⁵EV-024a. Four attachments, including a confidential letter to the trial judge dated 9 April 2024 concerning a different matter.

copies and the content are those of correspondence to a Member of Parliament, and this report describes it as such.

55. The covering email identifies three matters the Applicant wished to raise at a meeting: risks to the safety of herself and her children; alleged laundering of the proceeds of a prostitution enterprise; and alleged laundering of funds and circumvention of sanctions in connection with a named individual.⁴⁶ The second and third emails carried the three parts of the referral.
56. At 15:32 UTC the same day the Applicant wrote again, with no attachments.⁴⁷ That email states that a United States federal agency has had an investigation open since September 2023, names the Special Agent said to be in charge, gives his contact details, and offers to send the referral information. It records the Applicant's statement that these matters are outside the scope of the Family Court.⁴⁸
57. It also records that the material had been sent in several emails because of a 25MB attachment limit — which is why each transmission in this record appears as a sequence of emails minutes apart rather than as one.⁴⁹

The renderings of the referral

58. The referral files transmitted on 12 April 2024 are not the same files as those transmitted on 10 December 2023 or on 19 November 2025. Across those three transmissions, nine referral files carry nine distinct content hashes and none matches another. A fourth rendering, redacted, was created in December 2025.⁵⁰
59. **The differences are of the order of one kilobyte on files of 16 to 19 megabytes, which is consistent with re-export. Identity of content between renderings has not been established by any means available for this report, and is not asserted.**

Later transmissions

60. Correspondence to the High Court, Family Division is held as an exhibit.⁵¹ The native emails have not been located and the date is not established from a native source.
61. Correspondence to Members of Parliament, ministers and committees is held as an exhibit.⁵² Its date is unresolved: the exhibit filename gives 12 May 2024, while the email reproduced on its face is dated 12 May 2025.

⁴⁶Email, the Applicant to Alex Chalk MP, 12 April 2024, 15:32:21 UTC (EV-024d). No attachments.

⁴⁷EV-024d.

⁴⁸EV-024d. The email states that the material was sent in several parts because of a 25MB attachment limit.

⁴⁹Exhibit E3 (EV-025), correspondence to the High Court, Family Division.

⁵⁰Exhibit E4 (EV-026), mass correspondence to Members of Parliament, ministers and committees. The exhibit filename gives the date as 12 May 2024; the email reproduced on its face is dated 12 May 2025. The discrepancy is unresolved.

⁵¹The referral files transmitted on 12 April 2024 are a third distinct rendering. Across the transmissions of 10 December 2023, 12 April 2024 and 19 November 2025, nine referral files carry nine distinct content hashes and none matches another. A fourth rendering, redacted, was created in December 2025 (EV-031). Identity of content between renderings has not been established and is not asserted.

⁵²Email, the Applicant to Withers LLP, 19 January 2022, 01:06 UTC (EV-006a), enclosing the transcript excerpts as a Word document and the first part of the WhatsApp messages.

62. No response to the correspondence of 12 April 2024, or to the later transmissions, has been identified in the material described at paragraph 6.

Matter arising

9. The Judicial Office was informed of the subject matter on 20 October 2023 and gave an undertaking to pass the email to officials in the Family Division and the Master of the Rolls team. It received the three-part referral on 10 December 2023 and acknowledged it on 11 December 2023, recording that the attachments had not been opened. (Paragraphs 35 to 41)
- 9A. The referral was transmitted to the court-appointed single joint expert on 8 February 2024, twelve days before the final hearing began, and to a Member of Parliament who concurrently held office as Secretary of State for Justice on 12 April 2024. (Paragraphs 42 to 48)
- 9B. Nine referral files across the three transmissions of 10 December 2023, 12 April 2024 and 19 November 2025 carry nine distinct content hashes, and none matches another. Identity of content between the renderings has not been established. (Paragraphs 49 to 50)

Chapter 6 — The pre-action protocol transmission, November 2025

55. At 17:37 UTC on 19 November 2025 the Applicant sent a pre-action protocol letter for judicial review to three officials, copied to a select committee. The email states that Exhibit A would follow separately because of email size limits, and lists its sub-parts.⁵³
56. Two further emails followed at 17:38:11 and 17:38:38 UTC, carrying Exhibit A in two parts: the first part of the referral, then parts 2 and 3 together with six further exhibits.⁵⁴
57. The referral files transmitted on that date were the unredacted rendering.⁵⁵ A redacted rendering of the same 114 pages exists, in which identities are replaced by initials throughout, but the embedded metadata of its constituent files records creation on 14 and 15 December 2025 — approximately four weeks after this transmission.⁵⁶ **The redacted rendering did not exist on 19 November 2025.**
58. Among the further exhibits was a compilation of extracts from the Applicant's section 25 statement of 20 February 2024 and her conduct pleadings statement of 16 January 2024.⁵⁷

Matter arising

10. The referral files transmitted on 19 November 2025 were the unredacted rendering, naming the Respondent 22 times with addresses and company

⁵³Letter, Withers LLP to Hughes Fowler Carruthers, 23 March 2022 (EV-006b), under the heading "Miss Molina".

⁵⁴EV-006b. The letter records that the writer has had sight of the communications.

⁵⁵EV-006b. The letter records that the Respondent's Counsel referred to the communications at the directions hearing of 4 March 2022, and that a remark made in court by that Counsel should not be repeated.

⁵⁶Email, the Applicant's solicitor to the Applicant, 25 February 2024, 11:06, quoted within EV-013a.

⁵⁷Email, the Applicant to her solicitors, 25 February 2024, 16:41 UTC (EV-013a), enclosing two renderings of a WhatsApp download and a document of transcript excerpts.

numbers. The redacted rendering was created in December 2025 and did not exist on the date of transmission. (Paragraphs 55 to 57)

Chapter 7 — Custody queried, December 2025 to January 2026

59. On 12 December 2025 the Applicant wrote to the last custodian of record, copied to HMCTS Litigation, HMCTS Legal, the Private Secretary to the Lord Chancellor, her former solicitors and the Justice Committee. She asked four questions: whether the devices remained in the firm's custody; if not, the date of release and to whom; the court order or written authority under which any release occurred; and an audit trail of all movements, access or transfers while held.⁵⁸
60. The reply of 9 January 2026 stated that the firm had not acted for the Respondent for several years, that the matter should be taken up with him or his lawyers, and that the material was no longer in the firm's possession.⁵⁹
61. No date of release was given. No authority was identified. No audit trail was produced. The Applicant replied on 12 January 2026 that elapsed time and the end of a retainer did not answer the questions of custody, chain of custody and compliance with court-linked obligations.⁶⁰ No further substantive response has been identified.⁶¹
62. **Across the period covered by this report — April 2021 to January 2026 — the record contains no identifiable judicial or administrative decision determining the custody, review or release of the material. Not a decision to take no action: no decision at all.**

Matters arising

11. When custody was queried on 12 December 2025, the reply of 9 January 2026 produced no release date, no authority and no audit trail. (Paragraphs 59 to 61)
13. **Where are the two devices now, on what date and to whom were they released, and under what authority? (Paragraph 61)**
12. **No identifiable judicial or administrative decision determining the custody, review or release of the material appears at any point in the record described in this report. What record exists of any such decision, and if none exists, which body holds responsibility for that absence? (Paragraph 62)**

Chapter 8 — Limits of this record

63. The following are stated so that the boundaries of the report are visible.
64. The correspondence with the United States federal agency is not held in indexed form. What is held is the Applicant's account of it, given contemporaneously in the emails of 8 February and 12 April 2024, and an exchange reproduced within the first of those emails. The underlying

⁵⁸Email, the Applicant's solicitor to the Applicant, 25 February 2024, 17:31 UTC (EV-013b).

⁵⁹Email, the Applicant to her solicitors, 25 February 2024, 18:14 UTC (EV-013c).

⁶⁰EV-013c. The full audio of the conversation is held; a rendering of 20,908,635 bytes was transmitted to the single joint expert on 8 February 2024 (EV-023d).

⁶¹Email, the Applicant to her solicitors, 26 February 2024, 10:50 UTC (EV-013d), re-sending the excerpts on the morning of Day 5 of the final hearing.

correspondence itself has not been located and no part of this report rests on its contents.

- 65.** The contents of the criminal referral have not been read. The report records its transmission, not its allegations.
- 66.** The direction of individual messages in the screenshots of 6 May 2021 has not been established from the images themselves. The proposition that the Respondent returned the material rests on the description given in the letter of 25 February 2022 by the Applicant's own solicitors, and on her contemporaneous statement of provenance to those solicitors during the final hearing. Both are descriptions rather than demonstrations.
- 67.** The underlying document sets named in those screenshots were transmitted as hosting links, which expire. One folder of 57 pages is held. Whether the remaining sets are held as files has not been established.
- 68.** Where the report records that no document has been identified, the search is that described at paragraph 6 and no other.